

Court No. - 21

Case :- WRIT - C No. - 45218 of 2023

Petitioner :- Rashid @ Rashid Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- CSC, Gaurav Singh

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Sri Gaurav Singh, counsel for the electricity department prays for and is granted two days' time to complete his instructions
2. Put up as fresh on 11-01-2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 8.1.2024

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Court No. - 21

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- CSC, Gaurav Singh

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Sri Gaurav Singh, learned counsel appearing for respondent-Electricity Department, seeks time to ascertain whether final assessment order has been passed after following the procedure prescribed under the U.P. Electricity Supply Code, 2005 or not and if not, the remedial steps that are proposed to be taken in the instant matter.

2. Accordingly, adjourned to 23.1.2024 as fresh.

3. In the meantime, no coercive steps shall be taken against the petitioner in pursuance of the impugned recovery certificate.

(Kshitij Shailendra, J) (Manoj Kumar Gupta, ACJ)

Order Date :- 11.1.2024

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Court No. - 21

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Petitioner :- Rashid @ Rashid Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- CSC,Gaurav Singh

Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. Sri Gaurav Singh, learned counsel for the respondent-Electricity Department, prays for and is granted a weeks' further time to complete his instructions.
2. List as fresh on 1.2.2024.
3. Interim order is extended till the next date of listing.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 23.1.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 45218 of 2023

Petitioner :- Rashid @ Rashid Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- CSC, Gaurav Singh

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Sri Gaurav Singh, learned counsel appearing on behalf of the Electricity Department, is not in a position to show to this Court that any date for hearing was fixed before passing the order of final assessment. He also could not produce any evidence to show that the final assessment order dated 4.5.2022 was served on the petitioner. He seeks two days time to obtain further instructions from the concerned Executive Engineer.
2. Accordingly, adjourned to 6.2.2024 as a fresh case.
3. Interim order is extended till the next date of listing.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 1.2.2024

Jaideep/-

Chief Justice's Court

Case :- WRIT - C No. - 45218 of 2023

Petitioner :- Rashid @ Rashid Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- CSC,Gaurav Singh

Hon'ble Arun Bhansali,Chief Justice

Hon'ble Manoj Kumar Gupta,J.

1. Heard Sri Anil Kumar, learned counsel for the petitioner, learned Standing Counsel for the State-Respondents and Sri Gaurav Singh, learned counsel for Respondent No. 3, Electricity Department.
2. This petition has been filed by the petitioner questioning the recovery citation dated 24.08.2023 issued by Respondent No. 2.
3. Learned counsel for Respondent No. 3 submits that the recovery citation has been withdrawn by the Respondents on 05.02.2024.
4. In view of above factual situation, wherein, the recovery, under question, has been withdrawn by the Respondents, the writ petition has been rendered infructuous. The same is, therefore, dismissed as having become infructuous.

Order Date :- 6.2.2024

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(Manoj Kumar Gupta, J.) (Arun Bhansali, CJ)